

BUSINESS ETHICS · PRESENTATION

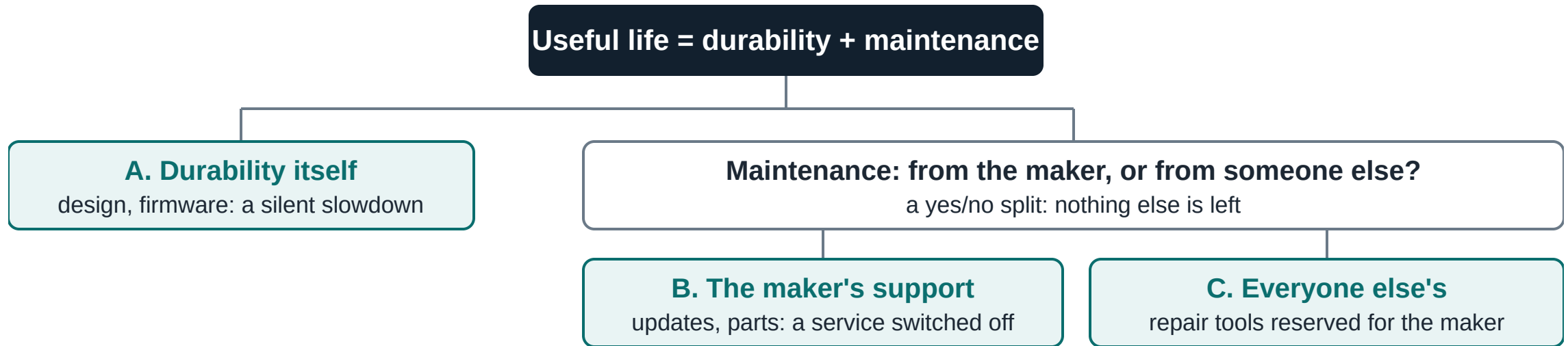
Planned Obsolescence

Why it is wrong, and why the classical rulings against it are sound.

Thesis: A maker may not limit a product's useful life, or the owner's power to keep it working, without the buyer's knowledge.

What exactly are we claiming?

Planned obsolescence: a maker's choice to limit a product's useful life, or the owner's ability to extend it.



Outside the claim: natural wear, and real progress that makes old devices less useful. Neither is a choice made against the buyer.

A "yes" needs knowledge behind it

Imagine a baker who adds something, not on the label, that makes his bread stale in one day, so you must buy again tomorrow. You paid for bread that lasts. Would anyone call that a fair sale?

REASON

A price is agreed for what the buyer believes he gets. Hiding a limit removes what his "yes" was about.

Test: would he have paid the same had he known?

CLASSICAL RULING

Concealing a defect (*tadlīs*, *ghish*) gives the buyer the right to rescind (*khiyār al-‘ayb*).

"Whoever deceives us is not one of us" (Muslim). Trade by mutual consent (Qur'an 4:29).

Applies to A, B and C alike: any limit the seller knows and the buyer does not.

Gain may not be bought with others' loss

Imagine a factory owner who saves money by letting waste run into his neighbors' wells. It is his land and his profit. Does that make it right?

REASON

A profit does not license a loss imposed on people who never agreed to it. Devices thrown away early land on the public as waste and on buyers as cost.

CLASSICAL RULING

Lā ḍarar wa lā ḍirār: no harm, and no answering harm with harm. Maxim: harm is to be removed.

Ibn Mājah, Mālik; al-Nawawī, Forty Hadith no. 32; Mecelle art. 20.

Not all waste comes from obsolescence; the claim covers only waste a maker chose to cause.

To own is to be able to use and maintain

Imagine you buy a car, but the dealer keeps a switch that stops it unless he approves each repair. Did you buy a car, or the right to ask for one?

REASON

An owner decides how a thing is used, repaired and disposed of. If the maker keeps those decisions, the buyer holds a license, not a possession.

CLASSICAL RULING

Full ownership (*al-milk al-tāmm*) carries the owner's right to use and dispose of the thing. Restricting it without his agreement wrongs him.

Applies most to C, and to B when support is withdrawn from a thing that still works.

Usable value may not be destroyed

Imagine a shopkeeper who deliberately cracks every plate he sold, a month after the sale. Nobody gains from the broken plates except the one who sells new ones.

REASON

Value destroyed benefits no one but the destroyer. A device that still works, made unusable by a choice, is value destroyed.

CLASSICAL RULING

Wasting wealth (*iḍāʿat al-māl*) is forbidden.

al-Bukhārī, Muslim.

The ruling targets waste caused by a choice, not the wear that time brings.

Defense 1 and 2

1 · NECESSITY

"Batteries age; progress makes old devices obsolete."

Agreed, and outside our claim. Necessity can excuse a limit, not hiding it. A slowdown with an engineering reason, disclosed, is honest; the same slowdown, silent, is the wrong.

2 · BENEFIT

"Obsolescence funds innovation."

Even if true, the maker's benefit does not license deceiving the buyer: a gain obtained by concealment is not lawful gain. Real innovation sells by being better, openly. Whether a ban would speed or slow innovation is an empirical question we leave open.

Defense 3 and 4

3 · CONSENT

"Buyers accepted the terms."

Consent needs knowledge and a real choice. Terms nobody can negotiate, imposed by every seller, offer no real choice. "Everyone does it" shows how common it is, not how right.

4 · THE MAKER'S RIGHT

"It is our property, or a security measure."

A right ends where it takes another's right. A real security reason can be disclosed, and the choice left to the owner.

What was shown, and what was not claimed

- **One split:** a maker can cut a product's life in three places only: its durability, its own support, others' maintenance.
- **Four independent reasons** make concealment and lock-in unjust: consent, harm, ownership, waste. Each classical ruling follows from a reason anyone can check.
- **Four defenses** (necessity, benefit, consent, right) either fall or narrow the claim. This list comes from survey, not logic: a fifth defense, if found, adds a fifth branch.

Not claimed: that every maker intends harm. Concealment and lock-in are unjust whatever the intent.

SOURCES

Classical rulings and public cases

- **Deception:** Sahih Muslim, Book of Faith ("Whoever deceives us is not one of us"); Qur'an 4:29 (trade by mutual consent).
- **Harm:** Ibn Mājah and Mālik, *Muwaṭṭa'* ("lā ḍarar wa lā ḍirār"); al-Nawawī, Forty Hadith no. 32; Mecelle (Majalla) art. 20.
- **Ownership:** the jurists' doctrine of full ownership (*al-milk al-tāmm*).
- **Waste:** al-Bukhārī and Muslim, on wasting wealth.
- **Cases named on slide 2 (public record):** Apple's 2017 admission of battery-related slowdowns; Google Nest's 2016 shutdown of Revolv hubs; John Deere repair-tool restrictions and the 2025 US FTC suit.